FRANCIS R FERNANDES & SONS (PRIVATE) LIMITED
and
VERENO JOSEPH FERNANDES
versus
CHIKOSHOMANA (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 29 and 30 June 2026

Opposed Application

N. Tonhodzayi, for the applicants
T. Nyamucherera, for the respondent

MAMBARA J

[1] This is an application for rescission of two default judgments, namely the order for substituted service granted under HCH 929/23 on 9 March 2023 and the default judgment granted under HCH 8437/22 on 17 January 2024. Mr N. Tonhodzayi appeared for the applicants. Mr T. Nyamucherera appeared for the respondent. I heard oral submissions from both counsel and, at the commencement of the hearing, advised them that I would adopt a rolled-up approach: the preliminary point would be dealt with first, followed by the merits of the rescission application.

Preliminary point

[2] The respondent's point *in limine* was that the second applicant lacked authority to institute these proceedings on behalf of the first applicant, and that the resolution annexed to the founding affidavit did not cure the defect. Counsel relied on *Madzivire and Others* v *Zvarivadza* 2006 (1) ZLR 514 (S), *Bank ABC Ltd* v *PWC Motors (Pvt) Ltd* HH 123/13, and the prior matters HC 3642/19 and HC 2565/20, arguing that sufficient proof of authority must exist before a company can litigate through a purported representative.

[3] I accept the general principle that a company litigant must act through proper authority. That is uncontroversial. But the present matter does not rest on a bare assertion of authority. The founding affidavit states that the second applicant deposes "on behalf of the 1st Applicant by virtue of a resolution passed on 23rd December 2025," and annexure "R" expressly authorises him "to represent the company," and "to depose, sign any affidavit and all documents that may be necessary." Beyond that, the applicants filed later Companies Office documents showing the first applicant's re-registration on 5 February 2026 and listing the second applicant as one of the current directors. The respondent attacked older CR 14 material from 2011 and 2012, but placed no affidavit from the Registrar of Companies, no official notice of cancellation, and no admissible proof that the later Companies Office documents are not what they purport to be.

[4] The applicants' reliance on *Dube v PSMAS & Anor* 2019 (3) ZLR 589 (S) is, in my view, well placed. The excerpt placed before me in the applicants' heads states that where authority is challenged, the party concerned may file material dealing with that challenge and may produce the resolution showing the mandate. In the words quoted in the heads, "the authority would then have spoken for itself" and the court must then determine the challenge on the material placed before it. That is precisely the situation here. There is a resolution. There are later official company records. The respondent's complaint is no longer about absence of authority; it is about the historical legitimacy of appointments. That takes the matter well beyond a mere preliminary objection.

[5] A further difficulty with the respondent's point is its own prior position. In the affidavit filed in support of default judgment, the respondent averred that "the 1st Defendant acting through the 2nd Defendant had collected rentals," and further sought to hold the second defendant personally liable because he allegedly collected rentals personally and conducted the affairs of the first defendant as its sole decision-maker. A litigant cannot, without more, found a default judgment on the basis that the company acted through a particular individual and then, in the rescission that follows, deny all nexus between that individual and the company. That contradiction materially weakens the preliminary objection.

[6] For those reasons, the point *in limine* fails.

Explanation for default

[7] The governing test for rescission is settled. In *Stockil* v *Griffiths* 1992 (1) ZLR 172 (S), the factors were said to be the "reasonableness of the applicant's explanation for default," the "bona fides of the application," and the "defence on the merits of the case which carries some prospects of success." Those factors are not to be weighed in isolation. The applicants also cited *Read* v *Gadner* SC 70/19 for the proposition that strong prospects may compensate for a weaker explanation, and vice versa. That is a correct approach.

[8] As regards the second applicant, the respondent relied on the Sheriff's return and on the principle, cited to me from *Gundani* v *Kanyemba* 1988 (1) ZLR, that a return of service is prima facie proof of valid service and is not lightly displaced. I agree with that general proposition. But prima facie proof is not conclusive proof. The second applicant gave direct positive evidence that the summons was affixed to a letter box which, according to him, had long ceased to function and had become merely a hole in the durawall, and that the Sheriff ought to have effected service personally on him or on a responsible member of the household. That evidence came from the very party allegedly served. On the papers before me, the respondent did not procure an answering affidavit from the Sheriff, nor did it meaningfully engage the factual detail of the challenge beyond insisting on the return itself. In those circumstances, I am unable to hold that the explanation for default is unreasonable. It raises a real, and not fanciful, issue on service.

[9] The same applies, though differently, to the first applicant. The respondent obtained an order for substituted service through publication in The Herald after unsuccessful service at 80 Kaguvi Street. Yet the record also shows that by April 2019 the respondent had already received correspondence from the applicants' lawyers disputing the respondent's asserted title, and that in the default judgment application the respondent itself pleaded that the first applicant acted through the second applicant. Whether publication alone, in that peculiar factual setting, was reasonably calculated to bring the process to the first applicant's attention is, at the very least, arguable. I do not decide that question finally in rescission proceedings. I hold only that the applicants' explanation is not so implausible as to justify shutting them out.

[10] The rescission application was also brought with reasonable promptitude once execution loomed. The second applicant says he first became aware of the judgment when served with the notice of seizure in December 2025, and the present application followed shortly thereafter. Nothing on the papers persuades me that the applicants deliberately sat back in wilful disregard of the process after obtaining actual knowledge of the judgments.

Prospects of success

[11] The applicants need not prove their defence finally at this stage. They must show a bona fide defence carrying some prospect of success. In my view, they have done so.

[12] First, the nature of the respondent's cause of action is itself not free from difficulty. The default judgment affidavit characterised the claim as one for "holding over damages," yet the applicants deny ever having stood in a lease relationship with the respondent. They contend that the summons was vague as to whether the claim lay in contract, delict, unjustified enrichment, or some form of corporate veil-piercing. I express no concluded view on that debate. It suffices to say that the point is not frivolous. It is triable.

[13] Second, prescription is plainly arguable. In the affidavit supporting default judgment, the respondent stated that it took transfer of the property on 21 March 2019 and wrote demand letters on 12 April 2019 directing the occupiers to stop paying rentals to any other party. The claim later included US$55,100 for the year 2019. Summons were issued only in December 2022. The applicants' contention that at least part of the claim may have prescribed is therefore not contrived. Importantly, the respondent did not squarely answer that defence in its opposing affidavit. The applicants were entitled to invoke the principle stated in *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs & Excise & Ors* 1993 (2) ZLR 121 (S): "what is not denied in affidavits must be taken to be admitted." Whether the whole or only part of the claim is prescribed is for trial. But the defence undoubtedly carries prospects.

[14] Third, the applicants raised a substantial issue on mitigation of loss. The record shows that the respondent asserted ownership in April 2019, knew rentals were allegedly being collected, and later obtained an eviction order. The applicants' contention is that the

respondent could and should have acted earlier or differently to stem the alleged loss. In support of that proposition, the applicants cited *Bernadis-Larrat and Another* v *Custom Capital (Pty) Ltd* 2017 ZAKZPHC 63, from which the heads quote the principle that an innocent party is not "entitled to sit back and allow damages to multiply." That is a sound statement of principle. Again, I decide no more than this: the defence is bona fide and triable.

[15] I add this. The court must be slow to permit technical finality to triumph over an apparently arguable defence where the explanation for default is not inherently dishonest and the claim itself raises questions of service, prescription, mitigation, and juridical foundation. As was recognised in the related litigation annexed to this record, courts should not allow technical objections, absent prejudice, to obscure determination on the true merits. In the present matter, justice is better served by allowing the dispute to be ventilated in the ordinary course.

Disposition

[16] Taking the matter as a whole, I am satisfied that the applicants have shown good and sufficient cause for rescission. The preliminary objection on authority fails. The explanation for the default is not unreasonable. The proposed defences are bona fide and carry prospects of success. The application must therefore succeed.

In the result, it is ordered that:

1. The point *in limine* is dismissed.
2. The judgment granted in chambers on 9 March 2023 under case number HCH 929/23 be and is hereby rescinded and set aside.
3. The default judgment granted on 17 January 2024 under case number HCH 8437/22 be and is hereby rescinded and set aside.
4. The applicants are granted leave to file their appearance to defend within ten days of the date of this order.

5. The respondent shall pay the costs of this application on the ordinary scale.

MAMBARA J……

Msendekwa-Mtisi, applicants' legal practitioners
Lawman Law Chambers, respondent's legal practitioners